

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ALEX DUNA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DENNISON DURGADEEN, Shield No. 5035,
SERGEANT MARLENE QUINONES, SERGEANT
CURRAN, DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER BARRON WHITTEN, POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 14, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER DENNISON DURGADEEN, Shield No. 5035, 40th Precinct, 257
Alexander Ave, Bronx, NY 10454
SERGEANT MARLENE QUINONES, 40th Precinct, 257 Alexander Ave, Bronx, NY
10454
SERGEANT CURRAN, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454
DEPARTMENT OF HOMELESS SERVICES POLICE OFFICER BARRON
WHITTEN, 781 East 135th Street, Bronx, NY 10454

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, ALEX DUNA, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983, 1986 and 1988, and of rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about February 14, 2014, at approximately 12:00 p.m., plaintiff was subjected to an assault, battery, and excessive force by defendant Department of Homeless Services Police Officer Barron Whitten ("DHS PO Whitten") inside of a deli located in the vicinity of 706 East 138th Street, Bronx, New York. Thereafter, on or about February 14, 2014 at approximately 12:30 p.m., plaintiff Alex Duna, was unlawfully searched, falsely arrested and falsely imprisoned by the individually named New York City Police Officer defendants outside of a homeless shelter located at 781 East 135th Street, Bronx, New York 10454. Plaintiff was deprived of his constitutional and common law rights when the individually named defendant NYPD police officers unlawfully searched, falsely arrested and imprisoned plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution. Moreover, the individually named NYPD police officer defendants and

defendant DHS Police Officer Whitten, under color of federal and state law, acted in concert and conspired with one another to reach an agreement to fabricate and contrive purported misconduct by plaintiff and to deprive plaintiff of his constitutional rights, including the rights to be free from false arrest and to be free from false imprisonment, by fabricating and contriving purported misconduct by plaintiff.

PARTIES

2. Plaintiff ALEX DUNA is a resident of the State of New York.

3. POLICE OFFICER DENNISON DURGADEEN, Shield No. 5035, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER DENNISON DURGADEEN, Shield No. 5035, is and was at all times relevant herein, assigned to the 40th precinct.

5. POLICE OFFICER DENNISON DURGADEEN, Shield No. 5035, is being sued in his individual and official capacities.

6. SERGEANT MARLENE QUINONES, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT MARLENE QUINONES, is and was at all times relevant herein, assigned to the 40th precinct.

8. SERGEANT MARLENE QUINONES, is being sued in her individual and official capacities.

9. SERGEANT CURRAN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT CURRAN, is and was at all times relevant herein, assigned to the 40th precinct.

11. SERGEANT CURRAN, is being sued in his individual and official capacities.

12. DEPARTMENT OF HOMELESS SERVICES POLICE OFFICER BARRON WHITTEN is and was at all times relevant herein, a peace officer, employee, and agent of the Department of Homeless Services an agency of The City of New York.

13. DEPARTMENT OF HOMELESS SERVICES POLICE OFFICER BARRON WHITTEN, is and was at all times relevant herein, assigned to the homeless shelter located at 781 East 135th Street, Bronx, New York.

14. DEPARTMENT OF HOMELESS SERVICES POLICE OFFICER BARRON WHITTEN is being sued in his individual and official capacities.

15. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department and/or the New York City Department of Homeless Services Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and/or the New York City Department of Homeless Services Police Department at all times relevant herein, with the power and authority vested in them as officers, peace officers, agents and employees of the New York City Police Department and/or the New York City Department of Homeless Services Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department and/or the New York City Department of Homeless Services Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) and the New York City Department of Homeless Services Police Department as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and a Department of Homeless Services, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers and peace officers as said risks attach to the public consumers of the services provided by the New York City Police Department and the New York City Department of Homeless Services Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

22. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

23. A 50-h hearing was conducted Pursuant to General Municipal Law Section 50-h on January 23, 2015.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

STATEMENT OF FACTS

25. By way of background, on February 14, 2014, plaintiff was a lawful resident of a homeless shelter located at 781 East 135th Street, Bronx, New York.

26. Prior to February 14, 2014, plaintiff was verbally harassed on several occasions by defendant DHS PO Whitten, and in response plaintiff filed several complaints with DHS PO Whitten's supervisors at the homeless shelter located at 781 East 135th Street, Bronx, New York.

27. On February 14, 2014, at approximately 12:00 p.m., plaintiff Alex Duna was lawfully present inside of a deli located in the vicinity of 706 East 138th Street, Bronx, New York.

28. Plaintiff went to the deli to order himself a sandwich for lunch.

29. While plaintiff was waiting for his sandwich, defendant DHS PO Whitten walked into the deli and began verbally abusing plaintiff without any justification.

30. Thereafter, without provocation or legal justification defendant DHS PO Whitten physically grabbed plaintiff and began punching plaintiff in the face.

31. Defendant DHS PO Whitten then physically dragged plaintiff's body outside of the deli, threw him to the ground and began kicking plaintiff.

32. As a result of the assault and battery by defendant DHS PO Whitten, plaintiff sustained physical injuries, including but not limited to injuries to his face, body and legs.

33. After plaintiff was assaulted and battered by defendant DHS PO Whitten, defendant DHS PO Whitten fled the scene of the incident as plaintiff was dialing 911 to report the assault and battery to the NYPD.

34. Several minutes later, the individually named defendant New York City Police Officers arrived at the scene.

35. The defendant police officers observed plaintiff bleeding from his mouth and plaintiff explained to the police officers that defendant DHS PO Whitten had just assaulted him.

36. The NYPD police officers listened to plaintiff's complaint about what occurred, observed the significant injuries to plaintiff's face and body, and asked plaintiff to get into their police car so that they could canvass the neighborhood and look for defendant DHS PO Whitten the individual that assaulted plaintiff. However, they were unable to locate defendant DHS PO Whitten.

37. Plaintiff complied with the officers' request and rode with them in their vehicle looking for DHS PO Whitten.

38. After canvassing the neighborhood, the defendant police officers drove plaintiff to the homeless shelter located at 781 East 135th Street, Bronx, NY to see whether DHS PO Whitten was at the homeless shelter.

39. The defendant police officers spoke with a DHS Police Officer that was on duty at the homeless shelter and asked to speak with DHS PO Whitten. The DHS Police Officer telephoned DHS PO Whitten and asked him to report to the homeless shelter immediately because NYPD officers were looking for him.

40. Pursuant to the NYPD officers' request, plaintiff identified defendant DHS PO Whitten immediately as the individual who assaulted and battered him at the grocery store.

41. As such, the defendant police officers arrested DHS PO Whitten for assaulting and battering plaintiff, causing plaintiff visible physical injuries.

42. EMS arrived at the homeless shelter and treated plaintiff for the physical injuries inflicted by defendant DHS PO Whitten.

43. Pursuant to the Patrol Guide Section 216-01, the defendant NYPD officers filled out an aided report documenting that plaintiff was the crime victim and that he received medical treatment.

44. Notably, defendant DHS PO Whitten did not have any physical injuries, nor did he receive any medical treatment whatsoever.

45. Clearly, based upon all of the objective facts in possession of the defendant NYPD officers at the time of the incident, no reasonable police officer would believe that plaintiff had committed any crime.

46. After defendant DHS PO Whitten was handcuffed, he reminded the defendant NYPD officers that he was also an officer and he would be disciplined and/or fined if they arrested him and he was prosecuted criminally.

47. Upon information and belief, the police officers told defendant DHS PO Whitten that they had to arrest him because it was already documented in the police paperwork that a complaint was made against him by plaintiff and that defendant DHS PO Whitten fled the scene of the underlying incident.

48.

49. However, upon information and belief, the defendant NYPD police officers told defendant DHS PO Whitten that they would try to resolve DHS PO Whitten's concerns about being disciplined at his job, by falsely alleging that that DHS PO Whitten made a complaint against plaintiff for assault, falsely arresting plaintiff and alleging that plaintiff assaulted defendant DHS PO Whitten, and then trying to convince plaintiff not to prosecute DHS PO Whitten if DHS PO Whitten agreed to drop charges against plaintiff.

50. Defendant DHS PO Whitten agreed with the defendant NYPD police officers planned course of action.

51. In accordance with the agreement between the defendant NYPD police officers and defendant DHS PO Whitten; the defendant NYPD officers falsely arrested plaintiff without probable cause unlawfully handcuffed him.

52. After plaintiff was handcuffed and falsely arrested, he was transported to Lincoln Hospital to receive further medical treatment for the physical injuries inflicted upon him by defendant DHS PO Whitten.

53. After spending several hours at Lincoln Hospital being medically treated, plaintiff was discharged from the hospital and transported to the 40th precinct.

54. On or about February 14, 2014, at approximately 11:00 p.m., plaintiff was transported to Bronx Central Booking.

55. Upon information and belief, defendant DHS PO Whitten and the defendant police officers conspired to falsely arrest plaintiff so that defendant DHS PO Whitten would not lose his job.

56. While at Bronx Central Booking, in furtherance of the defendants' conspiracy, the defendant police officers told plaintiff that if plaintiff wanted to be released and have the criminal charges against him dismissed, then he was required to sign a document agreeing to drop all charges against DHS PO Whitten.

57. Plaintiff told the defendant police officers numerous times that he did not want to drop the charges against defendant DHS PO Whitten.

58. Finally, after numerous hours of pressure and threats by the defendant police officers, and having had no sleep, plaintiff wanted to be released and go home and he signed a piece of paper that the defendant police officers placed in front of him, wherein plaintiff agreed not to pursue criminal charges against defendant DHS PO Whitten.

59. On February 15, 2014, after approximately 27 hours in custody, the Bronx District Attorney's Office declined to prosecute plaintiff and he was released from custody.

60. The unlawful search, seizure, false arrest, false imprisonment, assault, and battery of plaintiff was extremely stressful for plaintiff and caused plaintiff to suffer anxiety far above and beyond his psychological state prior to the incident.

61. Some of the police officer defendants observed the violations of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment and false arrest of plaintiff.

62. The false arrest, false imprisonment, assault, and battery of plaintiff by the individually named defendant police officers and defendant DHS PO Whitten caused him to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The individually named police officer defendants and defendant DHS PO Whitten while acting in concert and within the scope of their authority caused plaintiff to be unlawfully searched, seized, falsely arrested and imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In

addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

71. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The illegal search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

73. Defendants lacked probable cause to search plaintiff.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Alex Duna, including but not limited to detaining plaintiff in the same holding cell of his attacker.. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

80. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligence

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants owed a duty of care to plaintiff.

85. To the extent the defendant DHS PO Whitten alleges that the physical injury caused to plaintiff were caused by unintentional acts, then plaintiff's injuries were caused because defendant DHS PO Whitten beached his duty of care by accidentally and negligently hitting plaintiff in the face, throwing him on the ground, and kicking him.

86. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages and injuries associated with replacing his telephone hereinbefore alleged.

87. All of the foregoing occurred without any fault or provocation by plaintiff.

88. The City, as the employer of defendant DHS PO Whitten, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Assault

91. Plaintiff repeats and realleges paragraphs 1 through 90 as if fully set forth herein.

92. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

93. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, and the New York City Department of Homeless Services Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Battery

95. Plaintiff repeats and realleges paragraphs 1 through 94 as if fully set forth herein.

96. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner tripped plaintiff without his consent, causing him to fall face-first onto the ground and then forcefully secured him on his stomach and placed a foot on his back, with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

97. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, the New York City Department of Homeless Services Police Department, which are therefore responsible for his conduct.

98. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. The use of excessive force by defendant DHS PO Whitten punching plaintiff in the face, throwing him down on the ground, and kicking him was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

101. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, and the New York City Department of Homeless Services Police Department, which are therefore responsible for his conduct.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other defendant police officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein.

106. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, and the New York City Department of Homeless Services Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Conspiracy Under Section 42 U.S.C. § 1983

109. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The individually named defendants, under color of federal and state law, acted in concert and conspired with one another to reach an agreement to fabricate and contrive purported misconduct by plaintiff and to deprive plaintiff of his constitutional rights, including the rights to be free from false arrest, to be free from false imprisonment, and by fabricating and contriving purported misconduct by plaintiff.

111. As part of the conspiracy defendants, through the actions of defendants, did, without cause or justification, among other acts, falsely arrested and falsely imprisoned plaintiff.

TWELVTH CAUSE OF ACTION

Conspiracy Under Section 42 U.S.C. § 1986

112. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. Plaintiff claims damages individually, under 42 U.S.C. §§ 1983, 1985 and 1986, for his individual injuries set forth above, against the individually named defendants for neglecting to prevent or aid in preventing a civil rights conspiracy under 42 U.S.C. § 1985 described supra, of which each of the individually named defendants had knowledge and power to prevent.

JURY DEMAND

114. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Alex Duna demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 14, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER DENNISON DURGADEEN, Shield No. 5035, 40th Precinct, 257
Alexander Ave, Bronx, NY 10454
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10454
SERGEANT CURRAN, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454
DEPARTMENT OF HOMELESS SERVICES POLICE OFFICER BARRON
WHITTEN, 781 East 135th Street, Bronx, NY 10454

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
May 14, 2015

/s/
STUART E. JACOBS